

**STATE OF VERMONT
SECRETARY OF STATE
OFFICE OF PROFESSIONAL REGULATION
BOARD OF ALLIED MENTAL HEALTH PRACTITIONERS**

IN RE:)
Kelba Best) **Docket No. 2024-147**
License No. 068.0134257)

STIPULATION AND CONSENT ORDER

STIPULATION

NOW COME the State of Vermont ("the State") by and through Prosecuting Attorney George Hasselback, and Respondent, by and through their counsel Oettinger who hereby stipulate and agree as follows:

Authority

1. The Vermont State Board of Allied Mental Health Practitioners (the "Board") has authority to issue warnings or reprimands; suspend, revoke, limit, or condition current licenses; or prevent the renewal of lapsed licenses if, after disciplinary hearing, the Board finds that the Respondent has engaged in unprofessional conduct. 3 V.S.A. §129(a); 3 V.S.A. §129a; 3 V.S.A. §814(d); 26 V.S.A. Chapter 65; the Administrative Rules of the Board of Allied Mental Health Practitioners; and the Rules of the Office of Professional Regulation ("OPR").

Alleged Facts

2. Keiba Best ("Respondent") of Essex Junction, Vermont is licensed as a Licensed Clinical Mental Health Counselor ("LCMHC") under license number 068.0134257. This license was originally issued on September 17, 2020, and expires on January 31, 2027.
3. Prior to October 2022, Respondent was employed by a university located in Vermont to provide mental health counseling services.
4. As part of her responsibilities in this position, Respondent was required to record clinical notes for mental health counseling clients for which she had provided treatment.
5. Respondent left this position on or about October of 2022.
6. When Respondent left this position, Respondent had not completed her clinical documentation in approximately five hundred and seven (507) separate client notes.
7. This resulted in other staff of the university having to sign off on the incomplete notes.

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Prosecuting Attorney
Office of
Professional Regulation
89 Main Street
3rd Floor
Montpelier, VT
05620-3402

Violation One: 3 V.S.A. §129a(b)(2) Failure to practice competently by reason of any cause on a single occasion or on multiple occasions may constitute unprofessional conduct, whether actual injury to a client, patient, or customer has occurred. Failure to practice competently includes: (2) Failure to conform to essential standards of acceptable and prevailing practice.

8. The State re-alleges and incorporates Paragraphs 2 through 7 above.
9. Vermont law requires a LCMHC to conform to the essential standards of acceptable and prevailing practice.
10. Rule 6.6 of the Administrative Rules of the Board of Allied Mental Health Practitioners provides that the American Counseling Association (ACA) Code of Ethics and Standards of Practice "establish[es] the standard of practice and fitness within the profession and [is] incorporated" into the Administrative Rules of the Board of Allied Mental Health Practitioners.
11. Essential standards of acceptable and prevailing practice for LCMHC in Vermont require that a licensee create, safeguard, and maintain documentation necessary for rendering professional services and, regardless of medium, include sufficient and timely documentation to facilitate the delivery and continuity of services. *See* ACA Code of Ethics, A.1.b. ("Records and Documentation").
12. Paragraphs 2 through 7 demonstrate that Respondent failed to conform to the essential standards of acceptable and prevailing practice by leaving approximately five hundred and seven (507) clinical notes incomplete when she left her then employment.
13. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(b)(2).

Violation Two: 3 V.S.A. §129a(a)(7) Willfully failing to file the proper reports or records.

14. The State re-alleges and incorporates Paragraphs 2 through 7 above.
15. Vermont law requires a LCMHC to file proper reports or records pertaining to their licensed activities.
16. Paragraphs 2 through 7 demonstrate that Respondent failed to file proper reports or records when she left her employment and had not completed approximately five hundred and seven (507) individual clinical notes regarding persons she had provided mental health counseling services.
17. The act(s), omission(s), and/or circumstance(s) described above constitute grounds for discipline because the Respondent has committed unprofessional conduct in violation of 3 V.S.A. §129a(a)(7).

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Understandings

18. Respondent admits the facts above are true and the conditions below are necessary to protect the public.
19. Respondent understands that the Board must review and accept the terms of the Consent Order. If the Board rejects any portion, the entire *Stipulation and Consent Order* shall be null and void.
20. Respondent specifically waives any claims that any disclosures made to the Board during its review of this agreement have prejudiced Respondent's rights to a fair and impartial hearing if this agreement is not accepted by the Board and proceeds to a contested hearing.
21. Respondent has read and reviewed this entire document and agrees that it contains the entire agreement between the parties.
22. Respondent is not under the influence of any drugs or alcohol at the time Respondent signs this *Stipulation and Consent Order*.
23. Respondent voluntarily enters into this agreement after the opportunity to consult with legal counsel and is not being coerced by anyone into signing this *Stipulation and Consent Order*.
24. Respondent voluntarily waives Respondent's right to a contested hearing before the Board and waives any right to appeal from this *Stipulation and Consent Order*.
25. Respondent agrees that the Order set forth below may be entered by the Board.

ORDER

Based upon the above stipulation, it is **ORDERED AND ADJUDGED** as follows:

- A. Respondent's LCMHC license is hereby **REPRIMANDED**.
- B. Respondent's LCMHC license is hereby **CONDITIONED** commencing with the date of entry of this *Stipulation and Consent Order*. The conditions are as follows:

1. Issuance of License: Upon the commencement of these conditions, Respondent shall be issued a license labeled "conditioned."
2. Length of Time Conditions Imposed: The conditions shall remain in place until Respondent has completed all conditions as ordered. Respondent shall be subject to the conditions until Respondent completes a **minimum of one (1) year** of LCMHC practice in which she works at least forty (40) hours every two (2) weeks as a LCMHC. Part-time hours of fewer than forty (40) hours every two (2) weeks shall be

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credited on a prorated basis. Respondent shall be prohibited from working as a LCMHC for more than forty (40) hours per week during the conditioned period.

3. **Required Coursework:** Respondent shall, within ninety (90) days following the entry of this Order, at her own expense, complete ten (10) hours of pre-approved online courses, which must include education case management and proper record-keeping. For pre-approval, Respondent must submit to the Case Manager the name of each course, the name of the sponsoring organization, and a description of the course content and/or syllabus. Respondent must achieve a passing score on the post-tests for the courses, and submit test results, workbooks completed in full and in a satisfactory manner, and certificates of completion to the Office of Professional Regulation.

Failure to complete the courses within the prescribed timeframe shall constitute a violation of this Order. The coursework may not be counted toward any continuing education requirement of licensure.

4. **Notification to Employers/Program Director:** Respondent shall provide a copy of this Stipulation and Consent Order to all employers in any current or future setting in which Respondent practices as a LCMHC and inform them of Respondent's conditional license status. Within ten (10) days of the date of entry of this Consent Order or of any subsequent mental health employment, Respondent shall cause Respondent's immediate supervisor to submit to the Case Manager for approval an employer agreement form, acknowledging receipt of the Stipulation and Consent Order and the ability to comply with the conditions in the Consent Order.
5. **Reports from Employers/Program Director.** Within one (1) month of the date of this order or within one (1) month of commencing employment in a work setting other than solo private practice and bi-monthly thereafter, Respondent shall cause every employer Respondent has worked for during the month to submit an evaluation of Respondent's work performance and attendance during that month. These reports shall be submitted in writing on forms issued or approved by the Enforcement Case Manager and shall indicate satisfactory performance and attendance.
6. **Supervision.** Respondent must have general supervision of her practice by a pre-approved LCMHC licensed in Vermont or other pre-approved licensed mental health practitioner, who must be in good standing with the State of Vermont.

In the event Respondent is not employed by an agency that can provide such supervision, Respondent shall, at her own expense, engage a pre-approved supervisor ("Supervisor"), who is a Vermont-licensed LCMHC, PhD Psychologist or other licensed and pre-approved mental health practitioner, to provide supervision regarding profession-specific issues or concerns that arise in Respondent's practice, bearing in mind rules and regulations regarding patient privacy. Supervision must include discussions about transference/countertransference, particularly with challenging and/or long-term clients, as well as the therapeutic rationale for various clinical decisions, such as continuing treatment with a client long-term, frequency of sessions, meeting with a client outside of the office, self-disclosure, ethical boundaries and other ethical and clinical issues. Respondent's consultation with her Supervisor shall take

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place no less than once bi-weekly by videoconference (or similar) or in person. The pre-approved Supervisor shall provide bi-monthly reports identifying when each supervision meeting occurred, how long it lasted, and generally identifying the profession-specific issues discussed. The Supervisor shall also report any ethical violations, boundary transgressions, or other practice issues or concerns. Respondent shall be responsible for locating a Supervisor and sending the name, contact information, credentials and curriculum vitae of the proposed mentor to the Enforcement Case Manager as part of the pre-approval process.

7. Out-of-State-Practice. Before any out-of-state practice can be credited toward fulfillment of these terms and conditions, Respondent shall first obtain approval prior to Respondent practicing as a LCMHC outside the State of Vermont. If Respondent fails to receive such approval before practicing as a LCMHC outside the State of Vermont, none of the time spent practicing out-of-state will be credited toward the fulfillment of the terms and conditions of this Consent Order. Approval will be given for out-of-state LCMHC practice if the Director of Professional Regulation, in his or her sole discretion, finds that Respondent's planned out-of-state practice does not compromise the supervisory or protective purposes of this Stipulation and Consent Order.
8. Notification of Place of Employment/Personal Address/Telephone Number. Within five (5) days of the date of entry of this Consent Order, Respondent shall notify the Office of Professional Regulation, in writing, of her current place of employment, personal address, and telephone number, as well as the name of any mental health educational programs in which she is enrolled. Respondent shall further notify the Office of Professional Regulation, in writing, within forty-eight (48) hours of any change in employment, personal address, or telephone number.
9. Notification to Other States. In the event Respondent is licensed in a mental health profession in any other state(s), she must inform the licensing Board of the state(s) in which Respondent is licensed of the conditional status of her Vermont LCMHC license within thirty (30) days of the date of entry of this Order. If Respondent fails to provide such notification, it will be considered a violation of this Order.
10. License Renewal. If Respondent's license expires while this Order is still in effect, this Order does not automatically extend the license. In that situation, in order to continue to practice as a LCMHC, Respondent must timely apply for renewal, pay the applicable fee and demonstrate that she has otherwise complied with the requirements for license renewal.
11. Costs. Respondent shall bear all costs of complying with this Consent Order.
12. Violation of this Order. Any violation of this Order may be a basis for an additional disciplinary act. If a complaint of unprofessional conduct is made against Respondent during the term of this Order, this Order shall be automatically extended until the unprofessional conduct matter is concluded.

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13. Completion of Conditional License Period. After the minimum conditional license period and completion of the required coursework, Respondent may petition to remove any or all conditions on his license. Respondent must present proof that she has fully complied with the terms of this Order.

C. Notwithstanding any provision above, Respondent must continue to meet all requirements to maintain a LCMHC license, for license renewal, and for license reinstatement.

D. This Stipulation and Consent Order is a matter of public record and may be reported to other licensing authorities as provided in 3 V.S.A. §129(a).

E. This Stipulation and Consent Order will remain part of Respondent's licensing file and may be used for purposes of determining sanctions in any future disciplinary matter.

AGREED TO:

STATE OF VERMONT
SECRETARY OF STATE

Dated: 2/20/2025

By: George Hasselback
George L. Hasselback
Prosecuting Attorney
George.hasselback@vermont.gov

RESPONDENT

Dated: 2/19/25

By: Keiba Bragg Best
Keiba Bragg Best

ATTORNEY FOR RESPONDENT

Dated: 2/19/2025

By: Mark Oettinger, Esq.
Mark Oettinger, Esq.

APPROVED AND SO ORDERED:

Dated: 2/20/25

Signed by:
By: Mary Trombly
Chairperson

Date of Entry: 2/20/25

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